

25STCV11495 25STCV11495

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Case Number: 25STCV11495 Hearing Date: July 30, 2026 Dept: 408

Plaintiff Amy Hye-Young Kim's Counsel

Richard D. Hoffman's Motion to Substitute Plaintiff is DENIED.

I.

BACKGROUND

On April 21, 2025,

Plaintiff Amy Hye-Young Kim ("Plaintiff"), as successor in interest to Deceased

Suk Ja Son ("Decedent"), filed a complaint against Defendants Western Fifteen LLC ("Western"), Hankook

Property Management Co., Inc. ("Hankook"), Byung Cho ("B. Cho"), and Cindy Cho

("C. Cho", collectively "Defendants") alleging a single cause of action for

premises liability.

On June 6, 2025, B.

Cho and C. Cho ("Cho Defendants") filed an answer to Plaintiff's complaint.

On June 17, 2025, Defendants

filed an answer to Plaintiff's complaint.

On December 9, 2025,

pursuant to Plaintiff's request, Western was dismissed without prejudice.

On May 20, 2026,

Plaintiff's counsel, Richard

D. Hoffman ("Counsel"), filed this Motion to Substitute Plaintiff. On July 17, 2026, Cho Defendants

filed an opposition. On July 23, 2026, Counsel filed a reply.

II.

LEGAL STANDARD

"A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest, . . . , and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.30.)

"[D]ecedent's successor in interest' means the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.)

The beneficiary of the decedent's estate, in turn, means "[i]f the decedent died leaving a will, the sole beneficiary or all of the beneficiaries who succeed to a cause of action, or to a particular item of property that is the subject of a cause of action, under the decedent's will." (Code Civ. Proc., §377.10, subd. (a).) On the other hand, "[i]f the decedent died without leaving a will, the sole person or all of the persons who succeed to a cause of action, or to a particular item of property that is the subject of a cause of action, under Sections 6401 and 6402 of the Probate Code" (Code Civ. Proc., §377.10, subd. (b).)

In the case of commencing an action, the person who seeks to continue the pending action must also execute and file an affidavit which contains, in relevant part:

(1) The decedent's name. (2) The date and place of the decedent's death. (3) "No proceeding is now pending in California for administration of the decedent's estate." (4) If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest. (5) Either of the following, as appropriate, with facts in support thereof: (A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding." . . . (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." (7) "The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct."

(Code Civ. Proc., §377.32, subd. (a).)

III.

DISCUSSION

Plaintiff's Counsel moves to substitute Plaintiff Amy Hye-Young Kim ("Kim") for Jason Gil ("Gil"), an employee of Counsel's office willing and able to serve as successor-in-interest and personal representative of Decedent for purposes of this litigation, as plaintiff in the instant action. (Motion, at p. 3.) Counsel provides that Kim failed to participate in the litigation by failing to respond to Counsel's communications, assist with discovery responses, appear for scheduled meetings, and provide necessary records and information (Ibid.) Counsel argues that such failure to participate prevents further prosecution of the matter and exposes Decedent's claim to substantial prejudice. (Motion at p. 4.)

The court finds that the requested substitution is improper pursuant to Section 377.30. Kim is the successor-in-interest and personal representative for Decedent. A lack of participation in this matter is not grounds to strip Kim of her capacities. There is also no indication that Gil would be an appropriate successor-in-interest or personal representative under Section 377.11 based on a plain reading of the statute.

Accordingly, the motion is denied.

IV.

CONCLUSION

Plaintiff Amy Hye-Young Kim's Counsel Richard D. Hoffman's Motion to Substitute Plaintiff is DENIED.